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General Knowledge

Indian Polity

STUDY NOTES

Prime Minister & Central Council Of Ministers

PRIME MINISTER & CENTRAL COUNCIL OF MINISTERS

Introduction:

- President—nominal executive authority—head of the State
- Prime Minister—real executive authority—head of the government.

Appointment of the Prime Minister:

- No specific procedure is mentioned in the Constitution
- **Article 75:** PM to be appointed by the president.
- **Conventions:**
  - Leader of the majority party in the Lok Sabha as the Prime Minister.
  - **When no party has a clear majority in the Lok Sabha, the President may exercise his personal discretion.**
  - Appoint the leader of the largest party or coalition in the Lok Sabha and ask him to seek a vote of confidence in the House within a month.
- Discretion has been already exercised (in 1979)
- **When the Prime Minister in office dies suddenly and there is no obvious successor, then the president can exercise his discretion in appointing the PM.**
- **On the death of an incumbent Prime Minister, if the ruling party elects a new leader, the President has no choice but to appoint him as Prime Minister.**
- **A person who is not a member of either House of Parliament can be appointed as Prime Minister for six months, within which he should become a member of either House of Parliament;**
- Otherwise, he ceases to be the Prime Minister.
- **Constitutionally, the Prime Minister may be a member of any of the two Houses of Parliament.**
- In Britain, PM should definitely be a member of the Lower House (House of Commons)

OATH, TERM AND SALARY

The president administers to the PM the oaths of office and secrecy. In his **OATH OF OFFICE**, the Prime Minister swears:

- to bear true faith and allegiance to the Constitution of India,
- to uphold the sovereignty and integrity of India,
- to faithfully and conscientiously discharge the duties of his office, and

- to do right to all manner of people in accordance with the Constitution and the law, without fear, favor, affection, or ill will.

OATH OF SECRECY,

- PM will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a Union Minister except as may be required for the due discharge of his duties as such minister.

TERM

- Not fixed
- Holds office during the pleasure of the president.
- He cannot be dismissed as long as he enjoys the majority support in the Lok Sabha; he cannot be dismissed by the President.
- If he loses the confidence of the Lok Sabha, he must resign, or the President can dismiss him.

SALARY

- Salary : of an MP
- Determined by the Parliament

POWERS AND FUNCTIONS OF THE PRIME MINISTER

IN RELATION TO COUNCIL OF MINISTERS

- He allocates and reshuffles various portfolios among the ministers.
- He can ask a minister to resign or advise the President to dismiss him in
- He presides over the meeting of the council of ministers.
- The resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum.
- The resignation or death of any other minister creates a vacancy, which the Prime Minister may or may not like to fill.

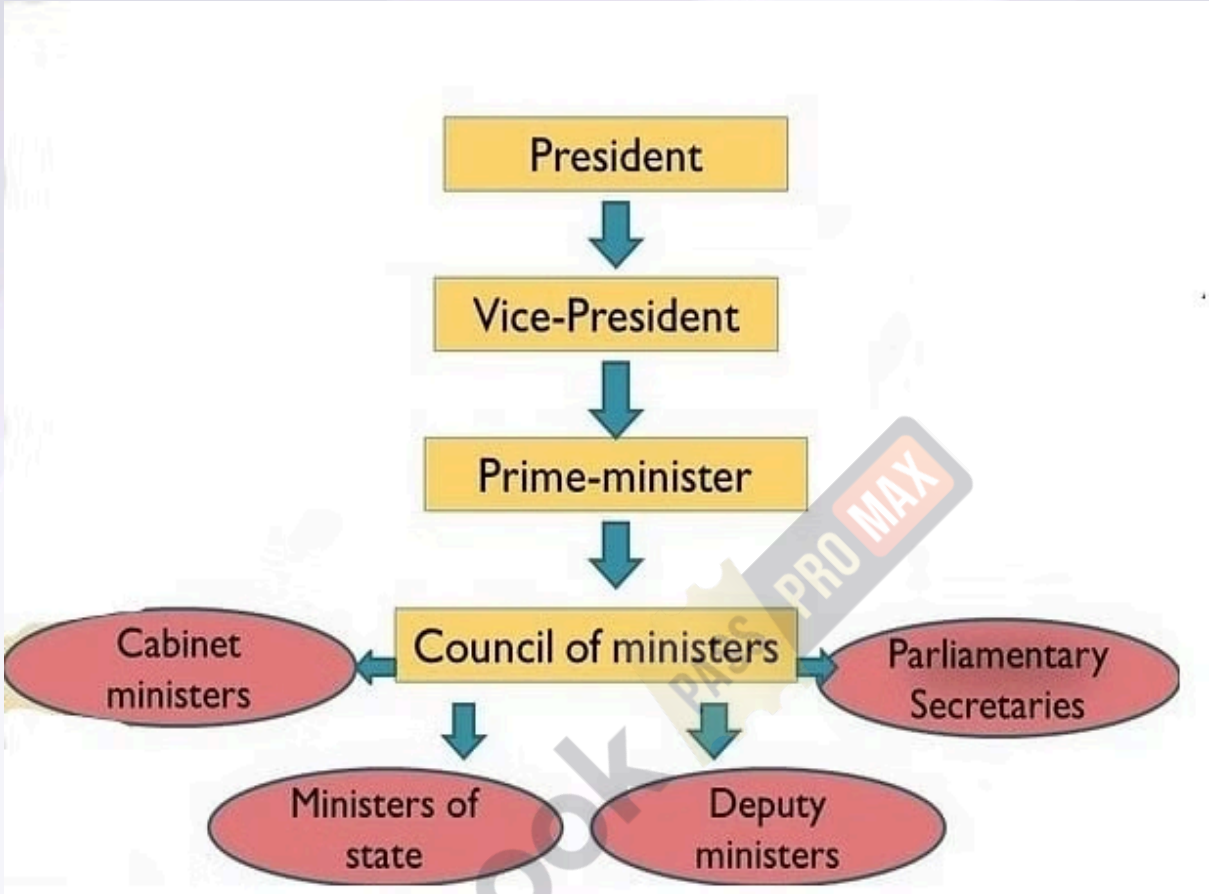
IN RELATION TO PARLIAMENT

- He advises the President regarding summoning and proroguing the sessions.
- He can recommend dissolution of the Lok Sabha to the President at any time.
- He announces government policies on the floor of the House.

OTHER POWERS AND FUNCTIONS:

- He is the chairman of NITI Aayog, National Development Council, National Integration Council, Inter-State Council, and National Water Resources Council.
- Important in shaping the foreign policy of the country.
- He is the crisis manager-in-chief at the political level during emergencies.

CENTRAL COUNCIL OF MINISTER



INTRODUCTION

- **Council of Ministers headed by the Prime Minister** is the real executive authority
- The principles of the **parliamentary system** of government are **not detailed in the Constitution**, but two Articles (74 and 75) deal with them

CONSTITUTIONAL PROVISIONS

ARTICLE 74—COUNCIL OF MINISTERS TO AID AND ADVISE PRESIDENT

- There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President, who shall act in accordance with such advice.
- However, the President can request the Council to reconsider its advice, after which the **President is bound by the re-considered advice**.
- **The advice tendered by ministers to the president shall not be inquired into in any court.**

ARTICLE 75—OTHER PROVISIONS AS TO MINISTERS

- The Prime Minister is appointed by the President and the other ministers are appointed by the President on the advice of the Prime Minister.
- **Total number of ministers in the Council** = max 15% of the total strength of the Lok Sabha (91st CAA 2003).
- **A member of either house of Parliament who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister**. (91st CAA 2003).
- **Ministers hold office during the pleasure of the President.**

ARTICLE 88—RIGHTS OF MINISTERS AS RESPECTS THE HOUSES

- **Every minister shall have the right to speak and take part in the proceedings of either House, any joint sitting of the Houses and any Committee of Parliament of which he may be named a member. But he shall not be entitled to vote.**

NATURE OF ADVICE BY MINISTERS

- **The 42nd and 44th Constitutional Amendment Acts have made the advice binding on the President.**
- The **nature of advice tendered by ministers to the President cannot be enquired by any court**.
- **Even after the dissolution of the Lok Sabha, the Council of Ministers does not cease to hold office.**
- The **president cannot exercise executive power without the aid and advise of the council of ministers.**
- The satisfaction of the President is not his personal satisfaction but the satisfaction of the council of ministers with whose aid and on whose advice the President exercises his powers and functions'.

APPOINTMENT OF MINISTERS

- **A person who is not a member of either House of Parliament can also be appointed as a minister. But, within six months, he must become a member (either by election or by nomination) of either House of Parliament; otherwise, he ceases to be a minister.**

OATH AND SALARY OF MINISTERS

- The president administers to the minister the **Oath of Office and Secrecy**, in which he swears:
  - to bear true faith and allegiance to the Constitution of India,
  - to uphold the sovereignty and integrity of India,
  - to faithfully and conscientiously discharge the duties of his office, and
  - to do right to all manner of people in accordance with the Constitution and the law, without fear, favor, affection, or ill will.
- In his **Oath of Secrecy**, the minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his

consideration or becomes known to him as a Union minister except as may be required for the due discharge of his duties as such minister.

SALARY

- Determined by Parliament from time to time.
- Salary : of an MP

RESPONSIBILITY OF MINISTERS

COLLECTIVE RESPONSIBILITY

- The council of ministers is collectively responsible to the Lok Sabha.
- All **the ministers own joint responsibility** to the Lok Sabha for all their acts of omission and commission.
- **When the Lok Sabha passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the Rajya Sabha.**
- It is the **duty of every minister to stand by cabinet decisions** and support them both within and outside the Parliament.
- If any minister disagrees with a cabinet decision and is not prepared to defend it, he must resign.
- Several ministers have resigned in the past owing to their differences with the cabinet.

INDIVIDUAL RESPONSIBILITY

- **Article 75** also contains the principle of individual responsibility.
- It states that the ministers hold office during the pleasure of the president, which means that the president can remove a minister even at a time when the council of ministers enjoys the confidence of the Lok Sabha.
- However, the President removes a minister only on the advice of the Prime Minister.

NO LEGAL RESPONSIBILITY

- **No provision in the constitution for the system of legal responsibility of a minister**
- It is not required that an order of the President for a public act should be countersigned by a minister.

COMPOSITION OF THE COUNCIL OF MINISTERS

The Council of ministers consists of three categories of ministers, namely,

1. **Cabinet Ministers,**
2. **Ministers Of State**
3. **Deputy Ministers.**

At the top of all these ministers stands the Prime Minister—the supreme governing authority of the country.

CABINET MINISTERS

- They head the important ministries of the central government like home, defense, finance, external affairs, and so forth.
- They are members of the cabinet, attend its meetings, and play an important role in deciding policies.

MINISTERS OF STATE

- They are either given independent charge of ministries/departments or can be attached to cabinet ministers.
- **In case of attachment**, they may be given the charge of departments of the ministries headed by the cabinet ministers
- **They work under the supervision and guidance of the cabinet ministers.**
- **In cases of independent charge,** they perform the same functions and exercise the same powers as cabinet ministers do.

DEPUTY MINISTERS.

- They are not given independent charge of ministries/departments.
- They are attached to the cabinet ministers or ministers of state
- They are not members of the cabinet and do not attend cabinet meetings

PARLIAMENTARY SECRETARIES.

- They are the members of the last category of the Council of Ministers (which is also known as the 'ministry').
- **They have no department under their control.**
- They are attached to the senior ministers and assist them in the discharge of their parliamentary duties.

DISTINCTION BETWEEN COUNCIL OF MINISTERS AND CABINET

Council of ministers	Cabinet
1. Wider body. Consists of 60 to 70 ministers.	1. Smaller body. Consists of 15 to 20 ministers.
2. **Includes all three categories of ministers**	2. **It includes the cabinet ministers only**.

3. It does not meet, as a body, to transact government business. **It has no collective functions.**	3. **It meets frequently** (once a week) to take decisions regarding the transaction of government business. **Thus, it has collective functions.**
4. It is vested with all powers but in theory	4. It exercises the powers of the council of ministers and thus acts for the latter
5. **Its functions are determined by the cabinet**	5. **It directs the council of ministers by taking policy decisions that are binding on all ministers.**
6. It implements the decisions taken by the cabinet.	6. It supervises the implementation of its decisions by the council of ministers.
7. Its size and classification **are determined by the prime minister** Its based on the conventions of parliamentary government as developed in Britain.	7. It was inserted in **Article 352** of the Constitution **Article 352** defines the cabinet, saying that it is **'the council consisting of the prime minister and other ministers of cabinet rank appointed under Article 75'** and **does not describe its powers and functions.** Its based on the conventions of parliamentary government as developed in Britain.
8. It is collectively responsible to the Lower House of the Parliament.	8. It enforces the collective responsibility of the council of ministers to the Lower House of Parliament.

ROLE OF CABINET

- Highest decision-making authority in our politico-administrative system.
- Exercises control over higher appointments like constitutional authorities and senior secretariat administrators.
- Deals with all major legislative and financial matters.
- Deals with all foreign policies and foreign affairs.
- Advisory body to the president and its advice is binding on him.

- Chief crisis manager dealing with all emergency situations.

KITCHEN CABINET/INNER CABINET

- This informal body **consists of the Prime Minister and two to four influential colleagues** in whom he has faith and with whom he can discuss every problem.
- It **assists the prime minister** in making crucial decisions.
- It is **composed of not only cabinet ministers but also outsiders like friends and family members of the prime minister**.
- During the era of Indira Gandhi, the 'Inner Cabinet', which came to be called the 'Kitchen Cabinet', was particularly powerful.
- The phenomenon of 'kitchen cabinet' also exists in USA and Britain

Merits

- It is a **smaller** and more efficient decision-making body than a large cabinet.
- It can **meet more often** than the large cabinet.
- It helps in maintaining secrecy in decisions on important political issues.

Demerits

- **Reduces the authority and status of the cabinet**
- It **circumvents the legal process** by allowing outside persons to play an influential role in the government's functioning.

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